

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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FANNY JIMENEZ and ANIBAL MARRERO

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE ANTHONY
SCIORTINO (Shield # 5372), and POLICE OFFICERS JOHN
and JANE DOES #'s 1-12 (names and numbers are unknown
at present) and Other unidentified members of the New York
City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiffs designate
Kings County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 22, 2019

Respectfully submitted,

/s/
Sydney O'Hagan
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

DETECTIVE ANTHONY SCIORTINO (Shield # 5372) 121st Precinct, Richmond County, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
FANNY JIMENEZ and ANIBAL MARRERO,

Plaintiffs,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE ANTHONY
SCIORTINO (Shield # 5372), and POLICE OFFICERS JOHN
and JANE DOE #'s 1-12 (names and numbers are unknown
at present) and other unidentified members of the New York
City Police Department,

Defendants.

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Plaintiffs **Fanny Jimenez and Anibal Marrero**, by their attorney, SYDNEY O'HAGAN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiffs, caused the unjustifiable arrest of plaintiffs and malicious prosecution and denial of a fair trial of the plaintiffs. Defendants additionally used excessive force in violation of Plaintiffs' constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Fanny Jimenez is a citizen of the United States and a resident of Brooklyn, New York.
3. Anibal Marrero is a citizen of the United States and a resident of Brooklyn, New York.
4. DETECTIVE ANTHONY SCIORTINO (Shield # 5372) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICER ANTHONY SCIORTINO (Shield # 5372) is being sued in his individual capacity and official capacity.

6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Does #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Does #2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50 relative to her malicious prosecution and denial of fair trial claims.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiffs on November 20, 2018.

STATEMENT OF FACTS

15. On December 27, 2017, at approximately 6:30 a.m., at 3608 Neptune Avenue, Brooklyn, NY 11224 plaintiff Fanny Jimenez was unlawfully arrested for criminal possession of a controlled substance, criminal sale of a controlled substance, intimidating a victim or witness, menacing and criminal possession of a weapon. On that same date and at the same location plaintiff Anibal Marrero was unlawfully arrested and charged with criminal possession and criminal sale of a controlled substance. Plaintiff Marrero did not commit any crime and was not in possession of any drugs or weapons to substantiate the charges.
16. At arraignment, bail was set on both Ms. Jimenez and Mr. Marrero.
17. Ms. Jimenez was incarcerated for approximately three days as a result of Defendants' lack of evidence to arrest and fabrication of evidence.
18. Mr. Marrero was incarcerated for approximately eight days as a result of Defendants' lack of evidence to arrest and fabrication of evidence.
19. The charges were dismissed and sealed on June 29, 2018.
20. Plaintiffs thereafter filed a timely notice of claim. A 50-h hearing was held and thirty (30) days passed without settlement of Plaintiffs' claim.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

21. Plaintiffs repeats and alleges paragraphs 1 through 20 as if fully set forth herein.
22. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
23. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
24. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

25. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.
26. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
27. Defendants commenced and continued a criminal proceeding against Plaintiffs with malice and without probable cause, caused her a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
28. Defendants commenced and continued a criminal proceeding against plaintiffs.
29. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
30. The prosecution and criminal proceedings terminated favorably to plaintiffs on June 29, 2018.
31. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
32. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

33. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION**FAILURE TO INTERVENE**

35. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD.
37. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
38. As a result of the foregoing, plaintiffs were subjected to an illegal search and undue force upon her person over the course of the false arrest.
39. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**NEGLIGENCE**

41. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. Defendants owed a duty of care to plaintiffs.
43. Defendants breached that duty of care by subjecting them to an illegal search and undue force and unprivileged deprivation of their liberty without sufficient or any cause to do so.
44. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
45. All of the foregoing occurred without any fault by plaintiffs.
46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION**NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

47. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
49. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
50. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH, EIGHTH, NINTH, TENTH CAUSES OF ACTION**42 U.S.C. § 1983 and 42 U.S.C. 1988**

Violation of First, Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiffs' federal first-amendment-retaliation claim (7th claim); false-arrest/excessive-force/unlawful-search claims (8th claim); malicious-prosecution claim (9th claim) and deprivation-of-fair-trial claim (10th claim).

51. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiffs' federal constitutional rights as protected by 42 USC Section 1983.
53. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiffs' Section 1983 ones here.
54. Plaintiffs' federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of their First, Fourth, Fifth and Fourteenth Amendment rights.
55. In particular, Plaintiffs alleges that Defendants' retaliatory and harassing false arrest, use of undue force upon him, unlawful search, malicious prosecution and fabrication of evidence violated her First, Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal

privilege to submit Plaintiffs to deprivation of his liberty, seizure and search of their person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

56. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterate the above allegations in support of the federal claims here.
57. In the event Plaintiffs prevail at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, she also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

ELEVENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

58. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
60. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
61. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
62. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiffs here.
63. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

- WHEREFORE, FANNY JIMENEZ and ANIBAL MARRERO**, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Respectfully submitted:

TO:

DETECTIVE ANTHONY SCIORTINO (Shield # 4372), Narcotics Squad, 121st Precinct, Richmond County, New York

ATTORNEY'S VERIFICATION

SYDNEY O'HAGAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs' is that Plaintiffs are out of the county.

DATED: New York, New York
September 22, 2019

_____/s/_____
Sydney O'Hagan, Esq.